

Question # 01

Compare the political and constitutional crises faced by Pakistan between 1947 and 1956 and the post-2008 era. How do they reflect structural weaknesses in governance?

Outline

(1) Introduction

(a) 1947- 1956 : A State Without a Stable Political Compass

a) Leadership Vacuum post independence

Ex: After Quaid-e-Azam death (1948), Liaqat Ali Khan's assassination left Pakistan leaderless, with four Prime Ministers in just four years.

(M.R. Kazmi; A Concise History of Pak)

b) Constitutional Delay and Institutional paralysis

Ex: Pakistan operated without a permanent constitution for 9 years, relying on the 1935 Government of India Act.



(Constitutional and - political history of Pakistan, Hamid Khan)

c) Arbitrary Executive Authority Undermined Parliament

Ex: Governor General Ghulam Muhammad dismissed P.M. Nazimuddin in 1953 despite majority support in the Assembly.

(Lawrence Ziring: Pakistan in the Twentieth Century)

d) Ethnic disunity due to forced provincial Mergers

Ex: The imposition of one Unit scheme (1955) merged West Pakistan's provinces, igniting ethnic resentment in Balochistan and Sindh.

(Ayesha Jalal; The Struggle for Pakistan)

e) Judiciary Enabled Undemocratic Rule

Ex: In the ^{Khan} Tariqul Karim Case (1959), the court validated the dissolution of the Constituent Assembly



by an unelected Governor-General.
(PLD 1955 Federal Court 240)

(3) Post 2008 : A Democracy Captured by Power Struggles and Legal Battles

(i) Civil - Military conflict behind
democratic Facade

Ex: The Memogate Scandal (2011)
exposed civilian fear of a military
coup after Osama Bin Laden's
killing.

(Husain Haqqani, Magnificent
Delusions)

(ii) Judicial Overreach into political
domain

Ex: PM Nawaz Sharif was
disqualified in 2017 over a minor
"iqama" issue following the Panama
leaks, a ruling widely seen as
a politically motivated.

(PLD 2017 SC 692)



(iii) Weak and divided Coalition Governments

Ex: The PDM alliance (2022) struggled with internal contradictions, obstructing consistent governance and reform.

iv) Politicized accountability undermines rule of law

Ex: The National Accountability Bureau (NAB) arrested opposition leaders disproportionately during PTI rule, drawing criticism from HRCP and international bodies.

(Human Rights Commission of Pakistan Report 2020)

v) Constitutional conflict between Judiciary and Executive

Ex: The 2023 deadlock over Punjab and KP elections showed the inability to enforce constitutional timelines due to political interference in Article 224 interpretation



(Supreme Court Order in Suo Moto
Case No. 1 of 2023)

(4) Broader structural Weaknesses in Governance Across Both Eras

a) Lack of Institutional continuity

~~Ex:~~ Frequent weak parliamentary roots and regime changes undermine political sustainability

Ex: 14 prime ministers have been changed between 1947-2025

b) Absence of Checks and Balances

Ex: From Ghulam Muhammad to Imran Khan, leaders used ordinances excessively

c) Overdependence on Unelected institutions

Ex: Military's ^{excessive} influence over civil decision such as ISPR press conferences influence political narratives.

d) Weak Local Government system



Grassroot democracy remains ignored despite constitutional provisions such as punjab local government elections were not held from 2016 to 2022.

5- Critical Appraisal

6- Conclusion